

CHAPTER XIX.

Miscellaneous Orders.

The following Orders refer to proceedings which may have to be considered at various stages of the cause, and it was thought convenient to arrange them under this head.

In all cases where any person or party, having obtained from the Court or from a Master any Order upon condition, does not perform or comply with such condition, he is to be considered to have waived or abandoned such Order, so far as the same is beneficial to himself; and any other party or person interested in the matter may, on breach or non-performance of the condition, take either such proceedings as the Order may in such case warrant, or such proceedings as might have been taken if no such Order had been made, unless the Court order to the contrary.

There must, unless the Court give special leave to the contrary, be at least two clear days between the service of a notice of motion and the day named in the notice for hearing the motion; and at least two clear days between the service of a petition and the day appointed for hearing the same; but in the computation of such two clear days Sundays, or days on which the offices are closed, are not to be reckoned. And all affidavits upon which any motion is founded must be filed at the time of the service of such notice of motion.

When any limited time from or after any date or event is appointed or allowed for doing any act or taking any proceeding, the computation of such limited time is not to include the day of such date or of the happening of such event, but is to commence at the beginning of the next following day; and the act or proceeding is to be done or taken at the latest on the last day of such limited time according to such computation.

1850.

LXXV.

Consequence of not complying with condition on which an Order obtained.

1850.

LXX.

Time for notices of motion.

1850.

VI, VII, VIII,
Computation of time.